

Anil Tomar @ Monu v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 July 2022 · Writ-C No. 16126 of 2022 · **Writ disposed; objection under paragraph 6.5 to be decided; coercive action stayed eight weeks.**

HEADNOTE

A writ challenging a Tehsildar recovery citation for electricity dues was disposed of without examining merits. The consumer was given liberty to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee, to be decided in accordance with law after hearing, and coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Anil Tomar challenged a recovery citation dated 23 February 2022 issued by the Tehsildar, Budhana, District Muzaffar Nagar, for Rs 4,18,432 plus other charges, seeking certiorari to quash the citation and mandamus restraining coercive recovery. Counsel for respondent No. 5, the Power Distribution Corporation, stated that the petitioner could file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — objection to recovery citation

HOLDING

Without expressing any opinion on merits, a writ challenging a Tehsildar recovery citation for electricity dues is disposed of by granting the consumer liberty to submit an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if so submitted, the licensee shall decide it in accordance with law, expeditiously, preferably within the next four weeks, after hearing; coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery citation was disposed of without merits by relegating the consumer to a paragraph 6.5 objection before the distribution licensee. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The statutory forum for objecting to the impugned electricity demand is paragraph 6.5 of the Supply Code, to be decided in accordance with law after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY CITATION AND THE UNDERLYING ELECTRICITY DEMAND OF RS 4,18,432

The Court expressly declined to express any opinion on merits. ¶ 1